

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1	24CV43463	Sandra Diaz-Kelly et.al. vs. Flowers Baking Company of Modesto	Plaintiff moves this Court to withdraw its admissions deemed admitted order. Plaintiff files this motion fourteen months after the order was entered by this Court. In addition, Plaintiff appeared at the hearing and failed to enter an objection at the time the hearing was heard. Plaintiff's motion is DENIED.
9:00 2	24CV437781	Rose Bouguerba v. Robert Belstock	Plaintiff petitions this court to compel defendant to comply with a civil service subpoena demanding defendant's appearance and production of documents. Defendant borrowed money from plaintiff but failed to pay back the money despite a default judgment. In this case, defendant was served with a civil subpoena but has failed to appear on several occasions for an order of examination and has produced no document. Under CCP 1987.1(a), the court may enforce a civil subpoena. Plaintiff's petition is GRANTED.
9:00 3	24CV454605	Jenna Arruda vs. Trena Suttcliffe	Defendant petitions this Court to compel defendant to produce further responses to production of records set 2. Plaintiff placed her mental health at issue in this case. Defendant's request is relevant and the Plaintiff's privacy is protected through a protective order. Defendant's petition is GRANTED. Defendant moved for monetary sanctions against Plaintiff. The motion for sanctions is DENIED.
9:00 4	24CV454683	Nancy Elizondo vs. California Casualty Indemnity Exchange	See below
9:00 5	25CV45894	Kostick and Wang, LLC vs. Jia Sun	Plaintiff moves this court to strike Defendant's answer to Plaintiff's complaint. Defendant has failed to respond to court orders compelling production of records and responses and has failed to pay court ordered monetary sanctions. Plaintiff's motion is GRANTED. Plaintiff moves this court for monetary damages of \$1,500. Plaintiff's motion for monetary damages is GRANTED.
9:00 6	25CV474000	Ravnil Kumar vs. Life Moves	See below
9:00 7	25CV475646	Kevin Lu vs. Kelley Paul	Court recuses itself.
9:00 8	25CV482242	Carlos Perez vs. Seven Trees Village Association	Plaintiff petitions this court to compel Defendant to produce records. Defendant responds that production has occurred and that Plaintiff failed to pay for assembly of records. CCP 5205 does not authorize payment for record assembly. Plaintiff's petition is GRANTED. Plaintiff's petition for civil penalties is DENIED.
9:00 9	26CV487931	Santa Clara Water Valley District vs. The San Jose Unified School District	Plaintiff petitions this court for prejudgment possession of easements located in an elementary school. Predjudgment possession requires that public interest and necessity require the project; that the project is placed or located in a manner most compatible with the greatest public good and the least private injury; and the subject property is necessary for the project. The court finds that the plaintiff has not met its burden of showing that the project is located in a manner most compatible with the greatest public good and the least private injury. Plaintiff fails to provide evidence as to why the specific location is necessary and why the project cannot be located elsewhere that does not interfere with the educational and recreational needs of an elementary school and the wider community as a whole. Plaintiff's petition is DENIED.
9:01 1	23CV461020	Helloha Coffee,et.al. vs. The Clove Art Complex	Defendant's attorney moves this court to withdraw his representation of Defendant. Motion is GRANTED.

Calendar Line 4

Case Name: *Elizondo v. California Casualty Ins. Co.*

Case No.: 24CV454683

On December 17, 2025, the Court [Hon. Pennypacker] sustained defendant California Casualty Indemnity Exchange’s (“Defendant”) demurrer to the first amended complaint (“FAC”) with leave to amend on the ground that it failed to state facts sufficient to constitute a cause of action because it was barred by the statute of limitations. While plaintiff Nancy Elizondo (“Plaintiff”) contended that “the last wrongful act did not occur until May 24, 2024, when the arbitration award as reduced to a judgment in the superior court... [and that] ‘the parties were still briefing the issues well into 2023’ and CCIE’s actions in seeking to confirm the arbitration award were also made in bad faith and are part of the continuing violations”; however, the court noted that “the FAC does not allege any wrongful act occurring after November 8, 2022.” (December 17, 2025 order re: demurrer to FAC, p.5.) Indeed, the FAC alleged that “[o]n August 10, 2020, plaintiff ELIZONDO issued a demand to CCIC for settlement of plaintiff’s claims for \$200,000, or the policy limit for underinsured motorist coverage through plaintiff’s CCIC Policy... [however, i]n response, defendant CCIC denied ELIZONDO’s claims for injury and damage pursuant to the CCIC Policy.” (FAC, ¶ 15.)

On January 15, 2026, Plaintiff filed a second amended complaint (“SAC”), asserting the prior first two causes of action for breach of the implied covenant of good faith and fair dealing and intentional infliction of emotional distress and a new cause of action for negligence. The SAC newly alleges that “Plaintiff proceeded with the entire arbitration process, through its final conclusion, that involved post-decision motions and requests for costs by the parties. Indeed, the